

A migrant can claim an Indian citizenship only after a period of seven years but the Pakistani passport expires in five years. India has no common criterion to address citizenship demands like these. However, the Sindhi immigrants who settled in Gujarat and Rajasthan have had a better deal. The government amended the Citizenship Rules, 1956, in 2004 for Pakistani nationals of the minority Hindu community, allowing the respective collectors of the district to grant citizenships to the migrants. The two states were given special rights because they have had the largest number of immigrants from Pakistan. The amendment furnished easy residency for the Hindu Sindhis from Pakistan in the two states. It not only allowed the displaced from the 1965 and 1971 wars and their children who got married to Indian citizens to get registered as Indian citizens through collectors, but also, the Hindu citizens from Pakistan who migrated to India more than five years back to get registered the same way.

Immigrant Sindhi residents of Indore and other cities of Madhya Pradesh are demanding a similar dispensation for themselves. Says Shankar Lalwani, chairman of Indore Municipal Corporation (IMC), who is the son of a 1947 migrant, "The Government should address the problem with a sense of urgency. Nearly 10,000 families in the state are suffering because of this."

The distress that these Sindhi settlers have undergone is immense. Sixty-two-year-old Kamla Bai, a resident of Dwarikapuri was lodged in jail for 10 days before being bailed in 2001. She was found staying illegally after the expiry of her visa. She couldn't get it renewed because her passport had lost its term validity. Her sufferings did not end here. Under immense stress because of his family's uncertain future, her husband Pallumal succumbed to a heart attack.

The problem in getting a new identity card is much tougher than it seems. Not many Sindhi families can afford to travel back to Pakistan in order to get a new



LONG WAIT: Kamla Bai (front) was lodged in jail after her passport expired

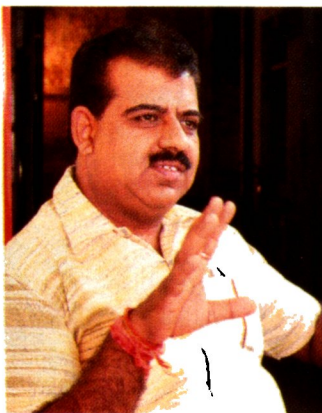
identity card. "Travelling to Delhi alone costs a lot. Add to that Rs 1,800 as passport fees and the cost goes further up," says Gopaldas Jhamanmal, the 62-year-old grocer from Jacobabad in Sindh province of Pakistan. In 1992, he had arrived with his extended family of 28 including six daughters and two sons. Ironically, the Indian Government allows Afghan citizens who have a valid passport to apply for Indian citizenship straightaway, if they are listed with any of the United Nations agencies working for refugees.

The Madhya Pradesh government has realised the extent of their suffering and broached the issue with the Centre. In 2006, the then principal home secretary of Madhya Pradesh, Satya Prakash, wrote to the Union Home Ministry, seeking an amendment to the Citizenship Rules, 1956, on

the lines of Gujarat and Rajasthan to include the state in the amendment list so as to put on fast track the citizenship applications of the immigrants. "We have held a couple of meetings with Union Home Ministry officials raising this demand," says state Home Secretary Sanjay Rana. A similar demand has also been raised by Sindhi settlers in towns like Ulhasnagar in Maharashtra. However, their numbers are just about 2,000.

It's not the possibility of jihadi elements or ISI agents coming in the guise of Sindhi immigrants that's worrying officials. It's the security nightmare that might unfold if some other states like West Bengal and Assam, which have huge influx of illegal Bangladeshi immigrants start demanding similar amendments for them. "It's a fair apprehension

on Centre's part. Just imagine the can of worms it could open if collectors could grant citizenship to Bangladeshi immigrants in Assam or Tamil refugees from Sri Lanka in Tamil Nadu," says a government official. As the Centre continues to sit on the state's proposal, it seems that the wait of the Sindhi immigrant to call India his true home will be a long one.



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SHANKAR LALWANI,
CHAIRMAN, IMC